

MCT GROUP v WALSH

25CF15585

PLAINTIFF'S MOTION TO COMPEL DEFENDANT'S DISCOVERY RESPONSES

Now before the Court is a motion to compel responses to discovery brought MCT Group ("Plaintiff") against David C. Walsh ("Defendant.") Defendant has not filed an opposition.

On March 26, 2026, Plaintiff served Defendant with Request for Production of Documents, Set One ("RPD") and Request for Admissions ("RFA") (collectively "Discovery") (Declaration of Aimee R. Morris ("Morris Decl.") ¶ 2, Ex. A.) Defendant never responded nor communicated with Plaintiffs' counsel about the Discovery. (*Id.* ¶¶ 4, 5.)

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under these sections are not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiffs served Defendant with the Discovery on March 26, 2026. Defendant has not responded to the RFAs and has not filed an opposition.

Accordingly, the Court **GRANTS** Plaintiffs' motion to compel responses to the RPDs. Defendant is to provide code-compliant responses, without objections, within fourteen (14) days of this order. The Court also **GRANTS** the motion to deem the facts as admitted as truth.

Plaintiff also seeks sanctions in the amount of \$960.00. The Court must impose sanctions in the amount of \$1,000.00 for the failure to respond to RPDs and to meet and confer in good faith (Code Civ. Proc. §2023.050. (a)(1) and (3).) Accordingly, Defendant is ordered to **pay sanctions** to Plaintiff in the amount of **\$1,000.00** within fourteen (14) days of this order.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

RAMIREZ v FAMILY DOLLAR, LLC, et al

25CV48285

DEFENDANTS' MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

Before the Court is a renewed motion to compel arbitration filed by Defendants Family Dollar LLC, Family Dollar Services, LLC, and Family Dollar Operations, LLC (collectively "Defendants"). For the reasons set forth below, the motion is denied.

The Court DENIES Defendants' Request for Judicial Notice as the proffered declarations are not matters for which judicial notice is appropriate. However, the Court notes the four declarations were all appropriately verified and they all have been considered as evidence in reaching this decision.

I. Factual and Procedural Background

Plaintiff began working for Defendants as a clerk beginning in or around June 5, 2023. (Complaint ¶ 12.) When Plaintiff was initially hired, she informed her manager, Amy, that she suffered from mental disabilities, but she was able to perform the essential duties of her position with reasonable accommodation without endangering the health or safety of herself or other employees of Defendants. (*Id.* ¶ 13.) On or around November 5, 2023, Plaintiff requested medical leave due to a cancer diagnosis. (*Id.* ¶ 14.) Defendants then terminated Plaintiff's employment on November 6, 2023. (*Id.* ¶ 15.)

Plaintiff alleges she was wrongfully terminated because of her disability and request for accommodation. Plaintiff filed her complaint alleging various violations of California's Fair Housing and Employment Act.

On January 26, 2026, Defendants moved for an order compelling the matter to arbitration pursuant to an alleged arbitration agreement ("Agreement") between Plaintiffs and Defendants which the Court denied for the lack of any testimony or evidence contradicting plaintiff's claim that she never signed the arbitration agreement. Defendants have renewed the motion accompanied by a declaration from Defendants' Regional HR Manager asserting the agreement contains plaintiff's electronic signature as part of her onboarding package; Plaintiff opposes the motion.